

specific and detailed information supporting its claim that issues should be precluded as a result of the deficient discovery responses. The Court is disappointed that Counsel fails to do that. The Court is aware of the discovery orders that the Court issued in response to the motions recently heard by this Court, and takes judicial notice of those orders.

As such, at this juncture, the Court is not prepared to impose an issue sanction. Accordingly, the Court makes the following orders.

Ruling

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court will **reserve** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

(a) Conduct a comprehensive meet and confer session either in person or remotely of such length sufficient to review each discovery request and each discovery response that are purportedly the subject of this Motion and which Defendant believes are not sufficient. Such conference shall not be cursory and should consist of significant and meaningful efforts by Counsel to address all items of outstanding discovery including a serious discussion as to why the information being sought is relevant and calculated to lead to the discovery of admissible evidence that will be of critical importance to this case; this conference shall contemplate the goal of resolving all discovery issues and should include an agreement whereby Plaintiff shall file supplemental responses that satisfy any outstanding issues within a reasonable time.

(b) Prepare a joint statement, signed by both Counsel, providing a status report to the Court communicating the results of the above "meet and confer" session, including a statement that summarizes each of outstanding discovery issues that have not been resolved, the specific and immediate plans to resolve the discovery issues and any outstanding issues which require resolution by the Court; this joint statement should provide the Court with sufficient information to make a decision whether to preclude the subject evidence from being introduced at trial. For the issues jointly resolved, the joint statement shall include proposed orders submitted to the Court that contains a stipulation resolving those issues, including an agreement to provide verified supplemental responses within a time certain;

(c) This joint statement shall be e-filed with the Court no later than May 1, 2026;

(d) The Court reserves the option to refer the resolution of this matter, and all future discovery disputes, to a Discovery Referee.

(e) The Court **continues** this Motion, *sua sponte*, on the reserved issues only to Wednesday, May 20, 2026 at 9:00 a.m.

4. Defendant's request for monetary sanction is **reserved**.

23. 9:01 AM CASE NUMBER: C25-01416

CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. ANA MARIA SANCHEZ

*HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED

FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I

TENTATIVE RULING:

Summary

Plaintiff Southwood Financial LLC as Trust Manager for Southwood Financial Trust I's ("Plaintiff" or "Southwood") Motion for Order Deeming Request for Admission to Defendant Ana Maria Sanchez ("Defendant") Admitted and for Monetary Sanctions is **granted**.

Background

In this collections and breach of contract action, Plaintiff alleges that Defendant took out student loans from Sallie Mae Bank to attend Sant Mary's College of California, located in Moraga, California. Defendant allegedly defaulted on this loan. The total amount owed by Defendant to Plaintiff for two outstanding accounts is \$36,630.20. This case is at issue. Defendant was served and filed an Answer and General Denial on June 16, 2025.

On September 30, 2025, Counsel for Plaintiff, Laura M. D'Anna, represents that Defendant was served with Plaintiff's Request for Admissions and Genuineness of Documents, Set One pursuant to Cal. Code of Civ. Proc. § 2033.020, et. seq. Defendant's response was due on October 30, 2025. Counsel represents that Defendant has not served responses, which renders Plaintiff unable to prepare for trial in this case.

Plaintiff filed this Motion for Order Deeming Request for Admission to Defendant Ana Maria Sanchez ("Defendant") Admitted and for Monetary Sanctions in the amount of \$810.00 on November 17, 2025. The Motion is supported by a Declaration of Counsel Laura D'Anna, Memorandum of Points and Authorities and Proposed Order. The Motion was served on November 24, 2026 by mail. No timely opposition was filed by Defendant.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead

to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Request for Admissions

A party may request that another litigant "admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Cal. Code of Civ. Proc. ("CCP") § 2033.010.) Unless the responding party moves promptly for a protective order under section CCP § 2033.080, he or she, within 30 days of service of the RFAs (CCP § 2033.250), shall respond in writing under oath and separately to each RFA (CCP § 2033.210, subd. (a)) and "shall answer the substance of the requested admission, or set forth an objection to the particular request" (id., subd. (b)).

Each response to the RFAs must be "complete and straightforward." (CCP § 2033.220, subd. (a).) The responding party shall admit as much of the request that is true, "either as expressed in the request itself or as reasonably and clearly qualified by the responding party" (id., subd. (b)(1)); "[d]eny so much of the matter involved in the request as is untrue" (id., subd. (b)(2)); or "[s]pecify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge" (id., subd. (b)(3)).

Unless the court determines that the responding party "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section CCP § 2033.220," it must order the RFAs deemed admitted. (Id., subd. (c).) "[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979. The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs. (CCP § 2033.280, subd. (c).)

Applied here, Defendant was properly served with a Request for Admissions, but did not file and serve responses as required by the Discovery Act.

Defendant, in *propria persona*, did not file a timely opposition to this Motion

The Court is aware that Defendant is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater

consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Ruling

1. Plaintiff's Motion is **granted**. The Court orders the Request for Admissions Set one Served on Defendant are deemed admitted, including the genuineness of the documents.
2. Plaintiff's request for sanctions is **granted**. Defendant is ordered to pay monetary sanctions in the amount of \$810.00 to Plaintiff's Counsel within thirty (30) days of this order.
3. The Court will execute the proposed order lodged on November 17, 2025 and will attach a copy of this tentative ruling. The clerk of the court is ordered to file and serve a copy of the order to all parties.